

**FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK
AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE***If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"***FORECLOSURE ACTION SURPLUS MONIES FORM**

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF New York

Toorak Capital Partners LLC

Index No. 850311/2024

Plaintiff,

-against-

West 125 Street Realty LLC, et. al.

Defendant.

MORTGAGED PROPERTY:543 West 125th Street
New York, New York 10027COUNTY: New YorkSBL #: Block 1982, Lot 5Sale Date: May 12, 2026**A. To be completed by the Referee**1. Final Judgment Amount per Judgment: \$ 8,114,375.692. Adjusted Judgment Amount (Upset Price): \$ 9,345,404.97

(This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)

3. Sale Price: \$ 6,320,000

(To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)

4. Surplus Amount (enter \$0.00 if no surplus) \$ 0***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*Referee's TOTAL compensation awarded/fees
earned in this matter:\$ 1,450.00Referee Name: Tom Kleinberger, Esq.Telephone: 917-326-5523Address: 411 5th Avenue, NY, NY 10016Email: tkleinberger@adamsre.comSignature/Date: [Signature] 5/12/26**If plaintiff is also the purchaser, complete both B. and C.***B. To be completed by Plaintiff's Rep.**Name: John O'KeefeAddress: 49 Andrew Avenue
Islip Terrace, NY 11752Telephone: 631-804-7716Email: pinnaclecourt@yahoo.comSignature/Date: [Signature] 5/12/26**C. To Be Completed by Purchaser**

Name: _____

Address: [Signature]

Telephone: _____

Email: _____

Signature/Date: [Signature] 5/12/26Additional Copies of this Form can be found at <https://www.nycourts.gov/forms/foreclosure/>